

PUBLIC GOVERNANCE RESOURCE

How We Are Governed

Selected sections from the Tech Pathways Initiative Board Governance Manual

Board Authority and Fiduciary Duties	Officers and Leadership Roles	Ethics, Conflicts, and Accountability
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This public-facing excerpt presents the governance standards most relevant to board authority, leadership accountability, ethical conduct, and fiduciary oversight.

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Board Authority and Fiduciary Duties

2.1 Collective Authority

The Board acts collectively through properly called meetings or lawful written action. Individual directors do not direct staff, bind the organization, promise funding, sign contracts, or speak for the Board unless authority has been delegated.

2.2 Fiduciary Duties

Duty	Expected Practice
Care	Prepare, ask informed questions, review reliable information, oversee risks, and act with the attention a prudent person would use.
Loyalty	Put the organization first, disclose conflicts, avoid self-dealing, preserve confidentiality, and protect charitable assets.
Obedience	Follow the mission, governing documents, donor restrictions, law, and valid board decisions.

2.3 Reserved Board Responsibilities

- Approve and periodically review mission, strategy, major goals, and measures of impact.
- Select, support, evaluate, and—when necessary—separate the chief executive or senior staff leader.
- Approve the annual budget, major unbudgeted commitments, borrowing, bank authority, and material contracts.
- Review financial statements, filings, audits or reviews, internal controls, and corrective actions.
- Approve or oversee major programs, partnerships, property transactions, litigation strategy, insurance, and enterprise risks.
- Elect directors and officers; establish committees; amend bylaws and policies as authorized.
- Safeguard youth, volunteers, staff, data, intellectual property, reputation, and donor trust.

2.4 Delegation

Delegation must identify the decision-maker, scope, spending or signature limits, reporting requirements, and duration. The Board retains oversight responsibility and may revoke delegated authority. Management decisions remain with authorized staff unless a matter is expressly reserved to the Board.

Officers and Leadership Roles

Role	Primary Responsibilities
President	Leads the Board; approves agendas with the Secretary and senior leader; facilitates meetings; supports committee accountability; serves as authorized spokesperson; manages chief executive oversight.
Vice President	Supports and substitutes for the President; carries delegated governance projects; helps coordinate committees and succession.
Secretary	Maintains minutes, notices, board roster, terms, resolutions, policies, disclosures, and official governance records; verifies quorum and votes.
Treasurer	Chairs or closely coordinates the Finance Committee; leads budget and financial-statement review; monitors controls, filings, cash, reserves, and audit/review work.

4.1 Officer Standards

- Officers are elected and may be removed in accordance with the bylaws.
- Officer authority is limited to the bylaws, board resolutions, approved budgets, and written delegations.
- No officer may approve their own compensation, reimbursement, contract, or conflict-related transaction.
- Outgoing officers promptly transfer records, credentials, property, and pending-work summaries.

4.2 Chief Executive or Senior Staff Leader

When the organization employs or appoints a chief executive or senior staff leader, that person manages day-to-day operations within board-approved strategy, budget, policies, and delegated authority. The Board speaks to the chief executive through the President or a clearly authorized process; individual directors do not supervise staff.

Ethics, Conflicts, and Accountability

7.1 Code of Ethics

- Act honestly, respectfully, lawfully, and in the best interests of the organization and youth served.
- Promote dignity, equity, inclusion, accessibility, and freedom from discrimination, harassment, exploitation, and retaliation.
- Use funds, data, property, influence, and opportunities only for authorized charitable purposes.
- Avoid misleading statements, undisclosed commitments, favoritism, and misuse of confidential or insider information.
- Report suspected wrongdoing through the procedures below.

7.2 Conflict of Interest

This manual incorporates the organization's separate Conflict of Interest Policy. It applies to directors, officers, committee members, employees, contractors in decision-making roles, and other covered persons.

1. Disclose the actual or potential conflict to the Board President or Secretary before discussion or action.
2. The disinterested decision-makers determine whether a conflict exists.
3. The affected person may provide factual information if requested, then leaves the deliberation and vote.
4. Disinterested directors consider alternatives, fairness, mission benefit, and whether the arrangement is in the organization's best interests.
5. Minutes record the disclosure, determination, absence/recusal, alternatives considered, and vote.
6. Covered persons sign an annual disclosure and update it when circumstances change.

7.3 Compensation and Related-Party Transactions

Compensation and insider transactions require approval by disinterested directors, appropriate comparability information, contemporaneous documentation, and a finding that the arrangement is fair, reasonable, and in the organization's best interests. No person participates in setting or approving their own compensation.

7.4 Confidentiality

Directors protect nonpublic information about youth and families, donors, personnel, partners, security, legal matters, strategy, and board deliberations. Confidentiality continues after board service. Disclosure is permitted only when authorized, legally required, or necessary to report suspected wrongdoing through a protected channel.

7.5 Whistleblower and Non-Retaliation Policy

Any director, officer, employee, volunteer, contractor, or participant may report in good faith suspected illegality, fraud, misuse of assets, unsafe conduct, retaliation, falsified records, discrimination, harassment, conflicts, or policy violations. Reports may be made to the President, Governance Committee Chair, or another disinterested director; allegations involving those individuals go to the Vice President or outside counsel designated by the Board.

- Reports may be confidential to the extent reasonably possible; anonymous reports will be considered based on available facts.
- Retaliation for a good-faith report or participation in an investigation is prohibited.
- The Board assigns an impartial reviewer, preserves evidence, limits disclosure, documents findings, and takes corrective action.
- Knowingly false reports may result in discipline; an unsubstantiated good-faith report does not.

7.6 Complaints Involving Youth Safety

IMMEDIATE RESPONSE	Concerns involving abuse, neglect, grooming, threats, self-harm, violence, or imminent danger must be escalated immediately under the organization’s safeguarding and emergency procedures. This governance manual does not replace mandatory-reporting or emergency obligations.
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